

Wolaita Sodo University

School of Law

Model Exit Examination for LL.B Law Students

Academic Year 2015 E.C

20 June 2015 E.C.

Time allowed: 3 (Three) Hours

Instructions

- ☞ This is a closed book examination for all materials.
- ☞ The exam has four parts. The number of questions allotted for each part is indicated besides the title of each part.
- ☞ Write your answer in the spaces provided under each questions.
- ☞ Switch off your mobile phone.

Please don't turn this page until you are told to do so!

PART ONE: PUBLIC LAWS (40 Questions)

1. One of the following is incorrect about sovereignty.
- A. Sovereignty implies that states don't accept any supreme authority above them without their consent.
 - B. Sovereignty dictates that obedience to international obligation is optional.
 - C. The executive (enforcement) jurisdiction of states is strictly territorial.
 - D. Immunities and privileges of a state in another state is an exception to the principle of sovereignty.

Answer_____

2. Which one of the following is true about the legal significance of Recognition of states?
- A. It may serve as an evidence to confirm or refute statehood when there is doubt regarding the four factual criteria of statehood.
 - B. Premature recognition may amount to unlawful intervention.
 - C. It may have a constitutive effect when new states are created through secession.
 - D. "B" and "C"
 - E. "A" and "B"

Answer_____

3. One of the following assertions is correct about the constitutive theory of recognition.
- A. Recognition is merely an acceptance of already existing situation.
 - B. New states are created by virtue of the will and consent of already existing states.
 - C. A new state obtains international personality by virtue factual situation not by virtue of the will and consent of others.
 - D. A state is created by its own efforts. E. Recognition is not an essential element of statehood.

4. Unicameral legislature was envisaged in the

- | | |
|------------------------------|---------------------------|
| A. 1931 Constitution | D. 1995 FDRE Constitution |
| B. 1955 Revised Constitution | E. None |
| C. 1987 PDRE Constitution | Answer_____ |

5. The following may be suspended during emergency under FDRE Constitution

- A. The right to equality
- B. The prohibition against inhuman, degrading treatment or punishment
- C. The right to life
- D. The federal democratic organization of the state

E. Right to self-determination

Answer_____

6. Constitutional issues are raised and resolved incidental to ordinary disputes between parties

A. Abstract Review

D. All

B. Concrete review

E. None

C. Ordinary litigation

Answer_____

7. The following may be amount to constitutional remedies except

A. Interdicts

D. All

B. Damages

E. None

C. Declaration of invalidity

Answer_____

8. Which one of the following is necessary true?

A. In every State, constitution is the supreme law of the land.

B. It is the fundamental choices of the citizen.

C. It is the constitutive act, not the constituted act, which constitutes the society.

D. All

E. None

Answer_____

9. Which one of the following is not true about presidential form of government?

A. The president is accountable to the legislature.

B. There is no fusion between the positions of the Head of State and Head of Government

C. The legislative and executive branches of the government effectively scrutinize the actions of each other.

D. All

E. None

Answer_____

10. A nation, nationality and people under the FDRE Constitution is a group of people:

A. who have common language, culture and similar psychological make-up

B. who have similar descent and who are economically developed

C. who have a belief in a related or common identity and inhabit an identifiable, contiguous territory

D. All except "C"

E. All except "B"

Answer_____

11. What rule of law requires is that

A. Subjection of everyone to the same law and ordinary court

- B. Equal protection of the law
- C. Supremacy of ordinary law
- D. Rule of law and not men

Answer_____

12. Which of the following is not non-constitutional rights matter

- | | |
|-----------------------------|-------------------|
| A. Separation of powers | D. Bill of Rights |
| B. Federal-State competence | E. None |
| C. Inter-state affairs | Answer_____ |

13. Which one of the following statements best describes why we pay tax to the government?

Because:

- A. The government has monopoly of power to force us to pay tax.
- B. We must compensate the government for enforcing our rights.
- C. Payment of tax is one of the manifestations of civilization.
- D. We pay tax to the government as it has to provide us public goods and to do so it needs funds.
- E. All

Answer_____

14. The following statements explain the situation of post WWI regarding states' scope of power of taxation except one.

- A. States power of taxation shirked as their role was limited to raising public revenue only.
- B. Post WWI witnessed expansion of taxation power of states as they had to regulate the market in addition to providing public goods.
- C. Taxation in post WWI became an instrument of both raising revenue and regulating demand and supply
- D. The economic situation of Post WWI proved the positive correlation of governments' economic roles and scope of power of taxation

Answer_____

15. Which one of the following constitutes the ground for division of tax into direct and indirect?

- A. Shift-ability or otherwise of the burden of tax from the tax payer to the consumer.
- B. The cascading effect of indirect taxes.
- C. Indirect taxes often reflect the principle of equity.
- D. Direct taxes are always progressive as opposed to indirect taxes.
- E. Except "D"

Answer_____

16. Tax policy is important in times of one of the following.

- | | |
|---|--------------------------------------|
| A. Interpreting tax laws | D. Administering taxes |
| B. Designing & reforming the tax system | E. Crafting subordinate legislations |
| C. Studying tax laws | F. All |

Answer_____

17. Identify the wrong statement.

- A. Tax as a means to remove income inequalities has a socialistic end.
- B. Tax is often viewed as a quid pro quo that it is paid for the services the government provides to the payer.
- C. Ability to pay principle dictates higher tax should be imposed on those who enjoyed more opportunities in the production of wealth.
- D. Principle of equity suggests graduated tax rates.
- E. All are correct.

Answer_____

18. All of the following statements describe the nature of Ethiopia's tax system except one.

- A. The Federal income tax law encompasses numerous distinct income taxes.
- B. The Ethiopian tax system is characterized by patchy and sketchy provisions.
- C. The tax system is chaotic: it is best known for its gaps and excesses.
- D. The FDRE constitution follows similar formula for the division of expenditure and revenue powers between the central and regional governments.
- E. None

Answer_____

19. Which one of the following factors **should not** be considered by the joint session of the two Houses in determining the tier of the government that shall levy a tax?

- | | |
|---|---------|
| A. The tax should be related to the source of the income. | |
| B. Administrative efficiency | D. None |
| C. Tax compliance cost | E. All |

Answer_____

20. One of the following statements justifies labeling the Ethiopian tax system as chaotic.

- A. The tax system is characterized by disorganized and multiple legislations and hence lacks intelligibility.
- B. The tax laws are consolidated.
- C. The tax system is not chaotic at all.
- D. None

Answer_____

21. Identify the true statement about Advance Rulings.

- A. Advance Ruling had never been practiced in Ethiopian tax law system before 2016.
- B. Tax payers can exclude the application of a Public Advance Ruling as the latter only binds the authority.
- C. Private Advance Ruling doesn't constitute source of tax law as it doesn't bind third parties.
- D. Advance Rulings help tax payers to able to predict the tax consequence of their transaction decisions.
- E. 'C' and 'D' are true

Answer_____

22. Identify the true statement about the Ethiopian tax jurisdiction rules.

- A. Residence matters when an income is from foreign source.
- B. Ethiopian source income is subject to tax regardless of the residence of the person generating such income.
- C. Source becomes important when a tax payer is a nonresident.
- D. All
- E. None

Answer_____

23. Which of the following incomes of a foreign business is subject to tax in Ethiopia?

- A. Income derived from Ethiopian sources through the business's permanent establishment.
- B. Rental income from lease of immovable located in Ethiopia.
- C. Income from sale of goods in Ethiopia.
- D. All
- E. None

Answer_____

24. Scheduler income tax model is best characterized as the followings except:

- A. The proper tax unit is the individual.
- B. Factors such as tax payer's number of dependents are considered while levying income tax.
- C. Scheduler income tax model is premised on segregation of sources of incomes.
- D. "A" and "B"
- E. All.

Answer_____

25. Which one of the following statements reflects on states' effort to avoid double taxation and tax avoidance schemes?

- A. States provide Foreign Tax Credit System in their tax legislations.

- B. States enter in to bilateral and multilateral agreements regarding their tax jurisdictions.
- C. Although it is not a success yet, states have been attempting to come up comprehensive and harmonized rules on tax jurisdictions.
- D. The Ethiopian income tax proclamation relinquishes its jurisdiction when an international agreement to which Ethiopia is a party gives such jurisdiction to another state.

Answer_____

26. Which one the following statement is most likely to be the primary justification for the Ethiopian government to apply a heavy tax on transfer of old automobiles?

- A. To keep old cars out of the market so that new ones will take over the roads that will in turn reduce car accidents.
- B. People need to have new cars.
- C. Old cars are often thought be source of accidents and, therefore, people need to be deterred from circulating them.
- D. The government wants to encourage the people to save rather than waste their money on luxurious old cars.
- E. “A” and “C”

Answer_____

27. One of the following statements depicts the difference between zero rated and VAT exempted transactions in Ethiopia.

- A. Import is an example of zero rated transaction while export is totally exempted from VAT
- B. Zero rated transactions are actually taxable transactions while exempt transactions are not
- C. Zero rated and exempted transactions practically have same effect on the tax payer.
- D. Zero rated transactions entitle the tax payer a VAT rebate although the he pays no VAT
- E. “B” and “D”

Answer_____

28. One of the following is **not true** about the Ethiopian human rights system.

- A. Ethiopia has ratified various international human rights instruments.
- B. Ethiopia has established national human rights institutions.
- C. Ethiopia has recognized human rights comprehensively in its Constitution.
- D. All
- E. None

Answer_____

29. Identify a **correct** statement about human right from the given alternatives below

- A. Human rights are different from other rights that it imposes all three duties on the government
- B. It is solely the responsibility of the subjects to respect human rights
- C. There is no significant difference between human rights and other rights
- D. All

Answer_____

30. Which one of the following statements is **incorrect** about classification of human rights

- A. It is proved that Socio-economic rights could only be fulfilled based on resource abundance and civil and political rights could be fulfilled without any cost from the side of the government
- B. Both rights, civil and political and economic social and cultural rights require resource abundance to ensure its fulfillment
- C. Classification of human rights proved that some human rights are more important than others.
- D. "A" and "C"
- E. All

Answer_____

31. A violation of one right will often affect other rights. This assertion goes in line with the concept of:

- A. The principle of indivisibility
 - B. The principle of universality
 - C. The principle of inviolability
 - D. The principle of inalienability
 - E. All
- Answer_____

32. One of the following Conventions one does not deal with the protection of certain category of persons who need special protection.

- A. The Convention on the Rights of the Child.
- B. The Convention on Elimination of All Forms Discrimination against Women.
- C. Convention on the Rights of Persons with Disabilities.
- D. The Convention for the Protection of All Persons from Enforced Disappearance.
- E. None of the above.

Answer_____

33. All of the given alternatives below constitute international bill of human rights, **except** one

- A. UDHR
- B. ICCPR
- C. ICESCR
- D. CERD

E. None

Answer_____

34. Identify an incorrect statement from the given alternatives below.

- A. UDHR is consists of the first definition of human right which is missing in the UN charter
- B. Unlike the league of nation convention, the UN charter consists of provisions that contributed for the development of human rights.
- C. ICCPR is the first binding human rights instrument.
- D. UDHR is binding human right instruments, despite the fact that it is declaration.
- E. All
- F. “A” and “B”

Answer_____

35. One of the following international instruments was an express demonstration of a general Consensus by states on the indivisibility, inter-dependence, and universal nature of human rights

- A. The Vienna Convention on the Law of Treaties.
- B. The Universal Declaration of Human Rights.
- C. The Vienna Declaration and Programme of Action.
- D. The International Covenant on Economic, Social and Cultural Rights.
- E. The Millennium Declaration

Answer_____

36. Which one of the following is true about classification of human rights?

- A. It helps in prioritizing one right over the other.
- B. We have universal standards to classify human rights.
- C. It might be considered as a reflection of ideological controversies in human rights standard setting.
- D. It mainly serves for academic purposes without any effect of prioritization.
- E. “C” and “D” are correct.
- F. All of the above are correct

Answer_____

37. Which one of the following is true about the similarities and differences between restrictions to and derogations from human rights provisions?

- A. Restrictions are justified by the rights of others alone whereas derogations might be made to protect the constitutional order
- B. A restriction suspends the right whereas derogation limits its application.

- C. Both are necessary evils at all times and in all places.
- D. Restrictions are perpetual in character whereas derogations are temporal.
- E. None of the above

Answer_____

38. Under international human rights law, which one of the following is not part of states' obligations to protect the human rights of their subjects?

- A. Assist citizens to improve their living standards
- B. Provide access to legal remedies when violations occur
- C. Eliminate any incentives to violate human right by third party
- D. Prevent violations of human rights by any individual or non-state actor.

Answer_____

39. Of the following one is not the defining feature of human rights.

- A. Human rights are the birth rights of all human beings.
- B. Human rights are founded on the respect for human dignity and worth of human person.
- C. Human rights are entitlements which can be given or taken away.
- D. Human rights are inviolable.
- E. None

Answer_____

40. Identify the correct statement that makes human rights different from other types of rights such as contractual rights.

- A. Human rights are entitlements of every human person while contractual rights are claims of the contracting parties.
- B. Unlike contractual rights, human rights can be assigned to third party.
- C. Unlike contractual rights, human rights do not emanate from the consent of human persons.
- D. All of the above.
- E. "A" and "C"

Answer_____

PART TWO: PRIVATE LAWS (35 Questions)

1. What is the difference between patrimonial rights arising out of contractual relations and those arising out of extra-contractual relations?
- A. There is no difference
 - B. Contractual relations are governed by the law of contracts, while extra-contractual relations are governed by the law of torts
 - C. Contractual relations are governed by the law of torts, while extra-contractual relations are governed by the law of contracts
 - D. Contractual relations and extra-contractual relations are both governed by the law of property.

Answer_____

2. What is the definition of property in its proper legal sense?
- A. The exclusive right to control, use, transfer... an object of moral value
 - B. The exclusive right to control, use, transfer... an object or a thing of financial value and its fruits
 - C. The right to acquire, use, and transfer things of financial value
 - D. The right to exclude all other persons from the use and enjoyment of a thing.

Answer_____

3. According to the Positivist theory, what is the relationship between law and property?
- A. Law creates property
 - B. Property creates law
 - C. Law and property are the results of the same social and economic forces
 - D. None of the above

Answer_____

4. What is the basis of classification between corporeal and incorporeal things?
- A. The economic value of the things
 - B. The physical or material nature of the things
 - C. The legal ownership of the things
 - D. The origin or source of the things

Answer_____

5. According to the Civic Code, what are corporeal things?
- A. Things that have no material or physical existence
 - B. Things that cannot be seen or touched
 - C. Things that have material or physical existence and unity
 - D. Things that can be perceived by the senses

Answer_____

6. What is the basis of classification between movable and immovable things?
- A. The legal ownership of the things
 - B. The physical mobility or immobility of the things
 - C. The economic value of the things
 - D. The source or origin of the things

Answer_____

7. According to the Civil Code, which of the following is considered an object of property governed by property law?
- A. Claims and other rights incorporated in securities to bearer
 - B. Shares issued by a company
 - C. Treasury bills issued by the government
 - D. Debentures issued by a company.

Answer_____

8. What is the relation of the possessor to the thing according to Salmond?
- A. It allows the possessor to put the thing to use which accords with its nature
 - B. It determines whether the possession of one thing brings with it the possession of another
 - C. It creates a reasonable expectation of non-interference in the use of the thing
 - D. All of the above.

Answer_____

9. Which one of the following is wrong concerned with the purpose of Contract?
- A. To support and control the millions of agreements that collectively makes up the market economy.
 - B. It empowers the parties to make agreements that the law will enforce.

- C. It also enables parties to the contract to make exchanges that might otherwise carry too great risk whether of disruption by some contingencies or default by the other party.
- D. Creates smooth functioning of business transaction by creating certainty, predictability, and enforceability.
- E. None

Answer_____

10. Which one of the following is wrong about the acceptance?

- A. It is a positive response to an offer.
- B. It is a declaration of intention to be bound by the potential contents of the contract.
- C. Slightest modification to the offer cannot be considered as rejection.
- D. It can be made in all possible ways of communication.
- E. All

Answer_____

11. Under the 1960 Civil Code of Ethiopia, contracting parties do have full "freedom to accomplish any of the following acts except:

- A. Determining mode of appropriation of payment.
- B. Determining the quality of fungible things.
- C. Determining the place, time, and manner of performance of the contract.
- D. Giving period of grace to a non-performing party. E. Determining the validity requirements of a contract.

Answer_____

12. One of the following is true about the effects of non-performance?

- A. In obligation to give, the debtor may escape liability by showing that he has not been at fault.
- B. In obligation to do best, the creditor can claim non-performance if he has not obtained the result expected.
- C. Force majeure exists when unforeseen conditions have made the obligation of a debtor more onerous than he foresaw.
- D. Force majeure exists when a seller shows that he has been unable to deliver a fungible good since the fungible good was consumed by a fire that broke out in the village.

- E. In a contract of donation, the donor is not liable for non-performance unless he has committed a grave fault.

Answer_____

13. In the following grounds duress can be Invalidated, except,

- A. The party believes that the harm will happen if he does not consent to the contract.
- B. The threat should be serious
- C. The threat must impress a reasonable person, Thus law doesn't expect a person to be a coward
- D. The harm must only be on the life of person.
- E. None

Answer_____

14. Which one of the following is not among potential reason behind putting limitation on Set-off?

- A. To deter unjust deprivation of property and recognize its immoral nature.
- B. Has great social importance in deterring unjust deprivation of properties
- C. Give protection and encourage the trust built among parties.
- D. All
- E. None

Answer_____

15. Performance of contract means

- A. Fulfilling one's own obligation as agreed
- B. Doing what was provided in the contract exactly in the same way as provided, if it is to do.
- C. Forbearing from doing what is forbidden by contract if it is not to do.
- D. All

Answer_____

16. Identify the wrong statement.

- A. Offeree's silence constitutes acceptance when the offer is to his exclusive interest.
- B. A person who signs the contractual document without, however, reading and understanding its content would be bound by such contractual document.
- C. Consideration is a necessary requirement for the validity of a contract.
- D. Unilateral promise to a contract is binding once accepted.

- E. An agreement by the parties on certain matters and that they will continue to negotiate towards final contract – agreement by principle is a contract.

Answer_____

17. Which of the following is not incorrect?

- A. All rights and obligations of the deceased person shall pass to his heirs if the heirs accept the succession.
- B. All rights and obligations of the deceased person shall be the hereditary estate up on his death.
- C. As a principle life insurance is taken as a hereditary estate
- D. Any payment related to pension and indemnity shall not be hereditary estate
- E. None of the above

Answer_____

18. Who are obliged to collate during the succession of the deceased?

- A. Descendants that renounce the succession
- B. Descendant who accept the succession and the deceased leaved them from collation under his will
- C. Universal legatees who have been benefited from the donation
- D. Descendants who accept the succession and benefited from the donation
- E. Ascendants who have been benefited from donation

Answer_____

19. Which person has the right to claim maintenance?

- A. The spouse of the deceased whether the succession is testate or intestate
- B. Descendants of the deceased if the succession is intestate
- C. Descendants of the deceased if the succession is testate regardless of being unworthy
- D. Ascendants, descendants, brothers and sisters of the deceased excluded by heirs who have a better right

Answer_____

20. Which of the following is true about creditors coming after partition?

- A. Creditors of the succession have better right than personal creditors of the co-heirs
- B. Creditors of the succession can sue one of the co-heirs for their whole claims
- C. Personal creditors of co-heirs have better right than creditors of the succession

- D. A singular legatee who appears after partition has no a status of creditor of the deceased

Answer_____

21. Which of the following is incorrect about partition of property through donation?

- A. The donation must be made from ascendants to descendants
- B. The donation may be made from descendants to ascendants
- C. Donation always be made between ascendants and descendants
- D. The donation may be inter-vivos or mortis-causa

Answer_____

22. One of the following is different from others.

- | | |
|--|-------------------------------------|
| A. Trademark infringement. | D. Theft of trade secrets |
| B. False advertisement. | E. Simulation of product packaging. |
| C. Dilution of goodwill and trademarks | F. None |

Answer_____

23. Choose the correct statement.

- A. Limiting production of goods by a dominant business person is not anti-competitive trade practice.
- B. An agreement between business persons in a vertical relationship to set the minimum resale price of goods is prohibited.
- C. Comparing goods equivocally in the course of commercial advertisement is not an act unfair competition.
- D. An agreement of merger between business persons is always prohibited.
- E. The cases of unfair competition should be entertained by ordinary courts of the country.
- F. All of the above

Answer_____

24. One of the following is statements is False.

- A. Consumers are not obliged to buy for reasons that they looked into quality of goods.
- B. A business person is obliged to display price of goods and services.
- C. If a business person displays his trade name at an overt place, it is an act of unfair competition.

- D. The basic goods and services may be subject to price regulation by the government.
- E. The regional governments are entrusted with a power to establish consumer protection judicial organ and appellate tribunal.
- F. Consumers have the right to demand replacement of the goods or refund of the price paid in the case of defective goods within 15 days from the date of purchase

Answer_____

25. Choose the incorrect statement about business organizations.

- A. They are formed by partnership agreement.
- B. They have both contractual and institutional aspects.
- C. They are formed to make profit.
- D. They are mainly formed to provide economic service to its members.
- E. They are governed by the commercial code.
- F. All of the above.

Answer_____

26. Which one of the following is True about commercial employees?

- A. The nature of their work is non-manual.
- B. They are not traders.
- C. They may act as agents even by express or tacit agreement.
- D. The labor laws may govern their employment relationship.
- E. The Commercial code provisions are applicable in their employment relationship.
- F. All of the above.

Answer_____

27. All of the following are business organizations recognized by the new Ethiopian commercial code proclamation no. 1243/2021 Except:

- | | |
|--|----------------------------|
| A. Ordinary partnership. | D. Joint venture |
| B. Limited liability partnership. | E. Private limited company |
| C. One person private limited liability. | F. General partnership |

Answer_____

28. One of the following is regarded as cease of operating business by partners.

- | | |
|----------------|----------------|
| A. Dissolution | C. Liquidation |
| B. Winding up | D. Termination |

E. “B” and “C”

Answer_____

29. One of the following is not true about firm name and trade name under the Ethiopian law.

- A. Firm name and trade name are the same.
- B. The firm name of business organizations should indicate the form of business organization..
- C. A trader may use the same name as firm name and trade name.
- D. The firm name for sole proprietorship can be the proprietor’s name.
- E. All of the above
- F. None of the above

Answer_____

30. Choose the incorrect statement about sharing profits and losses in business organizations.

- A. Shareholders of a share company get profits in proportion to their shareholding.
- B. Shareholders of a share company always stand to share losses arising out of the business in proportion of their shareholding.
- C. In private limited companies, losses can be shared between members who have not made their contributions.
- D. In general partnerships, limited partners share losses jointly and severally.
- E. “C” and “D”
- F. None of the above

Answer_____

31. Which one of the following is True about general partnership?

- A. Partners are jointly and severally liable.
- B. Transfer of share is not allowed.
- C. The names of its partners must be included in the firm name.
- D. Shares may be transferred to a third party by a majority vote.
- E. All except B
- F. All of the above

Answer_____

32. What are the mandates of the court in calculating the material damage caused to a person’s pecuniary interest due to the injurious act of another person?

- A. The court is required to calculate the out of pocket payments made by the victim to repair the property damaged or the medical and other related expenses incurred to heal the physical injury caused to his body.
- B. It shall calculate the *lucrum cessans* (opportunities interrupted) as a result of the injury causing event for which the defendant is liable.

- C. It shall exempt the defendants from the liability of the future gains lost by the victim.
- D. “A” and “B”
- E. All

Answer_____

33. Which of the following statements is correct among the given alternatives?

- A. Non-performance of one’s duty may entail either contractual or extra-contractual liability of the defaulted person based on the source of that duty.
- B. The basis for vicarious liability is the fault of a person who is answerable for the act of another person.
- C. The source of duty breached by the defendant is the key factor distinguishing the victim’s cause of action in tort or contract.
- D. “A” and “B”
- E. “A” and “C”

Answer_____

34. Which one of the following is a correct statement?

- A. Fault of the victim totally exempts the tortfeasor or at least reduces the extent of liability that the latter owes to the victim.
- B. Existence or non-existence of fault on the part of either the victim or the defendant is absolutely irrelevant in the assessment of compensation in case of strict liability under Ethiopian law.
- C. A person is not liable under the Ethiopian tort law for damage caused due to his negligence unless the law provides otherwise.
- D. “A” and “B”
- E. All

Answer_____

35. Which of the following statements is correct among the given alternatives?

- A. A plaintiff in tort is required invariably to prove the existence of damage.
- B. The test for “standard of good conduct” that a judge applies in relation to a professional regarding the practicing of his profession must be the same as the one applicable for a lay-person in relation to the same act or omission.
- C. There exists joint and several liabilities of the employee and the employer in case of vicarious liability in the Ethiopian tort law.
- D. “A” and “B”
- E. “A” and “C”

Answer_____

PART THREE: PROCEDURAL LAWS (25 Questions)

1. Identify the Wrong statement among the following:

- A. Where the accused says nothing in answer to the charge, the court shall enter he pleads not guilty
- B. An accused person who admitted every ingredient in the offence charged & convicted by the court forthwith may appeal against such conviction
- C. Criminal Procedure Law of Ethiopia expressly demands additional witnesses called by the court shall be sworn before giving their testimony & shall be cross-examined by the party against whom they are testifying
- D. Confession made by the accused under Art.35 of Criminal Procedure Code, admission made during police interrogation & the testimony of the crime victim alone are sufficient to warrant the conviction of the accused even if the accused pleaded not guilty
- E. All except “A”
- F. None

Answer_____

2. Identify the Wrong statement from the following under the Criminal Procedure Code of Ethiopia:

- A. Without prior authorization from the court public prosecutor shall not charge a young person
- B. Once public prosecutor decides not to institute proceeding under Art.42 of the Criminal Procedure Code of Ethiopia & such decision is confirmed by the Attorney General or Minister of Justice, then the law expressly prohibits the prosecutor from instituting the proceeding on the same offence against the same suspect in any later stage
- C. The accused may not be cross-examined while he is making defense statement on his case
- D. The crime victim shall not necessarily sworn before giving his testimony against the accused on his case & shall not be cross-examined by the accused or his advocate
- E. “B” and “D”
- F. “A” and “C”

Answer_____

3. Which one of the following is an objective of police interrogation?

- A. Determining whether there actually was a crime committed.
- B. Determining who committed the crime.
- C. Collecting evidences to prove that person's guilt.
- D. All
- E. None of the above

Answer_____

4. Which one is TRUE about the conditions of ordering remand under the 1961 Criminal Procedure Code of Ethiopia and the 1995 Constitution?

- A. It shall be ordered only when the interest of justice requires.
- B. It should be ordered only to enable the investigation to be completed.
- C. It should not be granted for bailable crimes.
- D. "A" and "B"
- E. "B" and "C"

Answer_____

5. According to the 1961 Criminal Procedure Law of Ethiopia, the court committing preliminary inquiry can carry out all of the following except?

- A. Besides taking evidences for prosecution, it can call additional witnesses up on its initiation.
- B. It may conduct hearing and can decide on the merit of the case.
- C. It may seek prosecution witnesses to execute bonds binding themselves to attend before trial court.
- D. It can order the remand of the accused.
- E. All

Answer_____

6. Which one of the following is the basic principle of modern Criminal Procedure Law?

- A. Ban on analogical interpretation
- B. Non-discrimination
- C. Humanity
- D. All

E. None

Answer_____

7. Which of the following is true about examination of witnesses in civil cases?

- A. During the examination-in-chief, the proponent tries to develop the testimony of the witness in the light most favorable to him,
- B. The scope of cross-examination is confined to facts raised during examination in chief
- C. The main aim of cross examination is to discredit that testimony of examination in chief.
- D. Leading question is allowed during cross- examining witnesses.
- E. All
- F. All except “B”

Answer_____

8. The wrong statement about review of judgment by court of rendition is that:

- A. Any new evidence discovered after judgment is admissible
- B. The newly discovered evidence must implicate either party of his witness for some kind of impropriety.
- C. The court must set aside its former judgment and retry the case.
- D. The appeal is not an absolute bar to application for review
- E. Decision of the court on application for review is final.

Answer_____

9. In the Ethiopian civil procedure code temporary injunction may be granted if the court is satisfied that:

- A. The property in dispute is in danger of being wasted, damaged or alienated by a party to the suit;
- B. The property in dispute is in danger of being wrongfully sold in execution of a decree;
- C. The defendant threatens or intends to remove or dispose of this property with a view to defraud his creditors.
- D. All of the above
- E. All except “C”

Answer_____

10. Under the civil procedure code, the attachment of property is to be withdrawn when:

- A. The amount decreed with costs and all charges and expenses resulting from the attachment of the property have been paid into court;

- B. The satisfaction of the decree is otherwise made through the court or certified to the court;
- C. The decree which is the subject of the attachment is set aside or reversed.
- D. All of the above

Answer_____

11. Which of the following conditions suffices for the transfer of execution in the Ethiopia civil procedure law?

- A. If the judgment-debtor resides, carries on business or personally works for gain within the local limits of the jurisdiction of another court, to which the decree is sent for execution;
- B. If the judgment-debtor has sufficient property to satisfy the decree within the local limits of the jurisdiction of the transferee court, but not within such limits of the transferring court;
- C. If the decree directs the sale or delivery of immovable property situated within the local limits of the jurisdiction of the transferee court; or
- D. If the court which passed the decree considers, for any other reason to be recorded, that the decree should be executed by the transferee court.
- E. All of the above

Answer_____

12. There are certain situations where the introduction of new evidence on appeal is authorized. What are those situations adopted in the civil procedure code of Ethiopia?

- A. Where the subordinate court refused to admit evidence that ought to have been admitted.
- B. Where the appellate court requires and document to be or any witness to be examined to enable it to pronounce judgment; or
- C. Where there is ‘substantial cause,’ justifying the production of the evidence.
- D. All of the above

Answer_____

13. The civil procedure code of Ethiopia has depicted are certain circumstances that a sale of immovable property can be set aside. What are those instances that, the court set aside the sale?

- A. The judgment-debtor has no saleable interest in the property;

- B. Another person has an interest in the property;
- C. There is material irregularity or fraud in the conduct of the sale, resulting in substantial injury to the applicant.
- D. All of the above

Answer_____

14. In order for the rules relating to cross-decrees to apply, the following conditions must be satisfied: which one?

- A. Both decree-holders must make application to the same court for execution of their decrees;
- B. The decrees must be obtained in separate suits;
- C. Both decrees must be for the payment of definite sums of money;
- D. The parties must be the same in the sense that the decree-holder in one of the suits was the judgment-debtor in the other suit and the parties were involved in both suits in the same capacities; and
- E. Both decrees are capable of execution at the same time by the court.
- F. All of the above

Answer_____

15. A transfer of the decree by operation of law may arise in any of the following ways:

- A. The decree-holder has died, and the decree has passed by devolution or succession,
- B. The decree-holder has become insolvent, and the decree has passed to the assignee or receiver;
- C. A judgment has been entered against the decree-holder in another suit, and the decree has been transferred in execution proceedings against him.
- D. All of the above

Answer_____

16. Which of the following is true?

- A. If the plaintiff omits to sue in respect of any portion of his claim, he may not afterward sue with respect to the portion so omitted.

- B. The burden of going forward with the evidence may shift to the defendant if defendant admits the allegations of the statement of claim and has raised what we have called affirmative defences
- C. In civil cases death of one of the parties does automatically cause the termination of a law suit.
- D. All of the above

Answer_____

17. When does the discovery of new evidence brought for the revision of the judgment of the rendition court.

- A. The evidence must be discovered after the judgment is rendered,
- B. The newly discovered evidence must affect the substance of the decision,
- C. The evidence must be of such nature as to suggest improper conduct, which tainted the judgment with fraud.
- D. The evidence must not have been within the knowledge of the applicant at the time the judgment was given.
- E. All of the above

Answer_____

18. Intervention in the Ethiopian civil procedure code:-

- A. It is a mechanism by which a party is brought into a pending case to present a claim or defense.
- B. A party who wants to intervene shall file a written application in which he is expected to state reasons justifying his intervention.
- C. The application shall be filed at any time before a decision is given.
- D. To intervene, a party must be interested in suit between other parties.
- E. If an application for intervention is granted, the proceedings are suspended until the original parties have been served with a copy of the statement of a party who is allowed to intervene.
- F. The Ethiopian civil procedure code does not provide a remedy in case a third party's application for intervention is rejected.
- G. All of the above
- H. All except "F"

Answer_____

19. Third-Party Practice [Impleader] in a civil procedure law:

- A. It is the procedural device enabling the defendant in a lawsuit to bring into a suit an additional party who may be liable for all or part of the original plaintiff's claim
- B. It is a mechanism by which a defendant brings into a suit a third party on the ground that such third party covers or shares the whole or part of claim of plaintiff.
- C. It is initiated by a defendant.
- D. The purpose of third party practice is to settle claims involving the same cause of action/ transaction in a single suit.
- E. It aims at avoiding separate suits over the same cause of action/transaction.
- F. All of the above
- G. All except "C"

Answer_____

20. Which of the following really connotes the preliminary objections under the Ethiopian civil procedure code?

- A. The list of preliminary objections provided under Art. 244(2) are not exhaustive.
- B. None of these preliminary objections listed in the code go to the merits of the case.
- C. The objections listed in the code do not relate to the question whether the defendant is liable to the plaintiff under the substantive law or not.
- D. The objections listed under the code should be disposed of as soon as possible, and should not go to the merits of the case.
- E. All of the above

Answer_____

21. In order for the rules relating to cross-decrees to apply, the following conditions must be satisfied: which one?

- A. Both decree-holders must make application to the same court for execution of their decrees;
- B. The decrees must be obtained in separate suits;
- C. Both decrees must be for the payment of definite sums of money;

- D. The parties must be the same in the sense that the decree-holder in one of the suits was the judgment-debtor in the other suit and the parties were involved in both suits in the same capacities; and
- E. Both decrees are capable of execution at the same time by the court.
- F. All of the above

Answer_____

22. _____evidence is when the existence of a certain fact is at issue, the existence of previous thing or mental status is relevant.

- A. Prospectant
- B. Concomitant
- C. Retrospectant
- D. Circumstantial
- E. “B” and “D”

Answer_____

23. One of the followings is true about relevancy of judicial decision.

- A. Judgments of civil court are not relevant and binding evidence on criminal courts.
- B. Criminal conviction will have a direct relevancy to determine the civil liability of the accused.
- C. The acquittal judgment of the criminal court does not have any relevancy in civil cases.
- D. The required standard of proof in civil and criminal cases is similar
- E. All except “D”

Answer_____

24. Assume Ato Tigabu brought civil suit against Ato Melaku claiming that he has failed to pay 50,000.00 /fifty thousand/ birr according to their contract of sale. Ato Melaku admits his allegation but come up with counterclaim alleging that Ato Tigabu failed to deliver him an object worth costs 70,000.00 /seventy thousand/ birr according to their agreement. Which one of the followings is true based on above hypothetical case?

- A. The burden of proof lies against Ato Melaku
- B. The burden of proof cannot shift against each of the parties
- C. The burden of proof lies against Ato Tigabu
- D. Proof is not required against both parties since there is admission

E. All except “D”

Answer_____

25. Which one of the followings is correct about evidence rule in civil case in Ethiopia

- A. More emphasis is given to oral evidence
- B. Personal relief and simple imprisonment is form of award
- C. Relevant and evidence with probative value are excluded
- D. Required standard of proof is similar with criminal case
- E. None

Answer_____

PART FOUR: MISCELANEOUS (20 Questions)

1. Choose the **wrong** statement from among the following.
 - A. Social habits do not have internal aspect of law.
 - B. Social habits do not have external aspect of law.
 - C. Primary rules are not effective without secondary rules.
 - D. John Austin's and Thomas Hobbes's sovereigns are similar in nature.
 - E. Natural law revived in the 20th century.

Answer_____

2. Which one of the following statements is true about American Legal Realists?
 - A. Legislation is no more than a source of law.
 - B. They do not embrace the idea of command theory.
 - C. They give more emphasis to the pronouncements of courts in real case scenarios.
 - D. All
 - E. None

Answer_____

3. According to Thomas Hobbes, the state of nature is not a place where:-
 - A. There was no law and government
 - B. Men cooperate for a harmonious social life.
 - C. Men have a rough equality of power to attain their ends; the inevitable result is war and conflict.
 - D. Man's life in the state of nature is "solitary, poor, nasty, brutish and short."

Answer_____

4. One of the following sentences about Socrates' speech is **incorrect**.
 - A. It is just to obey the command of god rather than that of state.
 - B. Obey a command as far as it is legal and just.
 - C. It is unjust to return harm for harm.
 - D. When the laws unjustly treat you, you can respond to them in a similar fashion.
 - E. A citizen tacitly agrees to respect laws by continuously living in the country.

Answer_____

5. Is credited for articulating the harm principle?

A. John Austin B. John Mill C. Jeremy Bentham

D. Hans Kelsen

Answer_____

6. Scholars propagating the 'separation thesis' firmly believe that:-

- A. There's a strong relationship between law and morality.
- B. There exists a loose relationship between law and morality.
- C. There's no relationship between law and morality at all.
- D. None

Answer_____

7. Kelsen's Criticism on Natural Law Theory is based on the fact that

- A. Natural law confuses value and reality
- B. Good/Bad contradiction
- C. Its insincerity
- D. Absoluteness or relativeness of values
- E. All

Answer_____

8. Which one of the following is **not** the contribution of the Stoics natural law philosophy?

- A. They contributed towards the application of Roman law to all men around the world.
- B. The idea of international law
- C. The need for country Eased and specific laws
- D. The conception of universal law under which all men are equal
- E. The fact that reason and human nature became guiding principles in problem solving.

Answer_____

9. Which one of the following statements *is false* about Locke's state of nature argument?

- A. Locke's state of nature is a perfect state of equality and freedom.
- B. In the state of nature men were judges in their own case.
- C. Locke favors absolute sovereign.
- D. In the Locke's state of nature, creation of private property was possible.
- E. The sole purpose of establishing a state, according to Locke, is to protect private property.

Answer_____

10. All are the advantages of positivism over natural law but not one:

- A. By requiring that all law be written or somehow communicated to society
- B. It reduces the power of the judge to the application of laws; it does not allow judges to make laws.
- C. It mixes law and morality
- D. All

Answer_____

11. Finnis' seven basic goods are generally the following:

- A. Life, meaning not merely existence but also the capacity for development of potential.
Within the category of life and its preservation Finnis includes procreation.
- B. Knowledge, only as a means to an end.
- C. Play, in essence the capacity for recreational experience and enjoyment.
- D. Aesthetic experience.

Answer_____

12. One of the following assertions is incorrect

- A. Legal realists give more emphasis to statutes than to the judge's beliefs
- B. Legal positivists put the sovereign at the center of the legal system
- C. Naturalists (followers of natural law school) blend law and morality
- D. Legal realists put the judge at the center of the legal system

Answer_____

13. Issuance of termination notice is necessary where:

- A. Dismissal of a worker is due to his/her misconduct at the workplace.
- B. Completion of the work for which the worker is employed.
- C. Resignation of a worker as a result of his/her employer's misconduct to him/her.
- D. Because of the worker's being unfit for the job due to his/her health.
- E. Due to the retirement of the worker.

Answer_____

14. Under the Ethiopian labor law, one of the following is necessarily true.

- A. Regarding its form, probation is a matter left for parties' agreement.
- B. Grounds of suspension of contract of employment can be lawfully expanded by collective agreement.

C. Where the terms of collective agreement are inconsistent with the provisions of labor law, the latter prevails.

D. None

Answer_____

15. A worker who has completed his probation period and who is not eligible for pension shall have the right to receive severance pay from the employer except:

A. His contract of employment is terminated because of permanent cessation of operation of the Undertaking due to bankruptcy or for any other cause;

B. His contract of employment is terminated by the initiation of the employer in violation of the law;

C. He has resigned due to failure of the employer to take measures despite being informed of a threat to his safety or health;

D. His contract of employment is terminated because of his transfer to another employer.

Answer_____

16. Identify the correct statement under Ethiopian employment laws (in particular labor and civil servant law):

A. Notice in termination of contract of employment puts the worker under default in that the worker, failing to rectify the cause which necessitates the notice, would be dismissed out rightly.

B. In reducing work force the employer may validly take disability in to account (based on productiveness). i.e persons with disability can be reduced first.

C. Where an employer fails to terminate a contract of employment made for definite period despite the period expires, the contract would be presumed to have been made for indefinite period.

D. The contract of a worker who is under maternity leave may not be terminated on any ground until the leave expires.

E. None

Answer_____

17. The contract of employment, collective agreement, work rules drawn up by the employer, and the Labor Proclamation No. 1156/2019 are the main legal instruments that govern the

rights and obligations of the employer and the employee. Which of these legal instruments has primacy of application to a particular labor case?

- A. A collective agreement
- B. Labor Proclamation No. 1156/2019
- C. A contract of employment
- D. Whichever is beneficial for the worker
- E. Whichever is agreed by the employer and the worker

Answer_____

18. The Labor Law recognizes extensive prerogative powers of the employer in the employment relationship, spanning from setting work rules to deciding on incentives for workers. What is the fundamental requirement provided by the Ethiopian labor law that the employer **cannot** disregard in exercising these prerogative powers?

- A. Economic efficiency
- B. Increasing productivity
- C. Enhancing workers' skills
- D. Maximizing profit
- E. Equal treatment of workers irrespective of their sex, religion or marital status

Answer_____

19. _____ tries to answer the question “what is good?”

- A. Axiology
- B. Virtue Ethics
- C. Theory of Moral Obligation
- D. Theoretical Normative Ethics
- E. Applied Ethics

Answer_____

20. Which one of the following is not among the premise of relationship between dignities of legal profession to promotion of Justice?

- A. The loss of honor and dignity of profession of law results in disrespect for court and law.
- B. People lose confidence in courts.
- C. Grievances will not be brought to court
- D. If justice prevails in the society, persons will begin to redress their grievances by individual actions.
- E. They take laws in their hands.

Answer_____

END!